

United Nations (Security Council) Act, 1947

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Union of India - Act

United Nations (Security Council) Act, 1947

UNION OF INDIA

India

United Nations (Security Council) Act, 1947

Act 43 of 1947

Published on 20 December 1947

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United Nations (Security Council) Act, 1947

(Act

No. 43 of 1947

)

Last Updated 19th July, 2019

Statement of Objects and Reasons. - Article 41 of the Charter of the United Nations which has been ratified by the Government of India reads as follows : -

'The Security Council may decide what measures not involving the use of armed force are to be employed to give effect to its decisions and it may call upon the members of the United Nations to apply such measures. These may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio and other means of communication and the severance of diplomatic relations.

The purpose of this Bill is to enable the Government of India to apply effectively the measures which the Security Council may call upon it to put into force.

[Dated 20.12.1947.]

This Act has been extended to the new Provinces and merged States by the Merged States (Laws) Act, 1949 (59 of 1949), S.3 (1.1.1950) and to the States of Manipur, Tripura and Vindhya Pradesh by the Union Territories (Laws) Act, 1950 (

30 of 1950

), S.3 (16.4.1950). Manipur and Tripura are full-fledged States now (see Act 81 of 1971). Vindhya Pradesh is a part of M.P. State (See Act

37 of 1956

). The Act was extended to the Union territory of Himachal Pradesh by H.P.A.L.O., 1948. Himachal Pradesh is now a State - See Act 53 of 1970. The Act has now been extended to the Union territory of Pondicherry by Act 26 of 1968 w.e.f. 1.8.1968.

An Act to enable effect to be given to certain provisions of the Charter of the United Nations.

Whereas it is expedient to enable effect to be given to certain provisions of the Charter of the United Nations;

It is hereby enacted as follows: -

1.

Short title.

- This Act may be called the United Nations (Security Council) Act, 1947.

2.

Measures under Art 41 of the Charter of the United Nations.

- If, under Article 41 of the Charter of the United Nations signed at San Francisco on the 26th day of June 1945 the Security Council of the United Nations calls upon the Central Government to apply any measures, not involving the use of armed force, to give effect to any decision of that Council, the Central Government may, by order published in the Official Gazette, make such provisions (including provisions having extra-territorial operation) as appear to it necessary or expedient for enabling those measures to be effectively applied, and without prejudice to the generality of the foregoing power, provision may be made for the punishment of persons offending against the order.

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